

3. **After payment of debts and legacies executor must account for surplus.**—After payment of debts and legacies, if the executor or administrator be guilty of *laches* in accounting for the surplus estate to the residuary legatee (*d*) or next of kin (*e*), he will be charged by the Court with interest for the balance improperly retained.

4. **Trustees under bankruptcy must not neglect to pay dividends.**—So, if the *trustee* of a bankrupt's estate neglect to pay a dividend to the creditors (*f*), or the *receiver* of an estate do not move * the Court in proper time to [*339] have the rents in his hands made productive (*a*), they will be ordered to account for the money with interest from the time when the breach of duty commenced.

5. **No excuse that the trustee or executor did not use the money.**—And an executor or other fiduciary cannot excuse himself by saying that he made no actual use of the money, but lodged it at his bankers (*b*), and to a separate account (*c*), for it was a breach of trust to retain the money.

6. **Delay may be explained by the mistake of the trustee or executor.**—But, where an executor conceived himself to be entitled to the residue, and the Court considered his claim to be just in itself, but was obliged from a particular circumstance in the case to give judgment against him, it was thought too severe to put him in the situation of one who

(*d*) *Forbes v. Ross*, 2 Cox, 113; *Seers v. Hind*, 1 Ves. jun. 294; *Younge v. Combe*, 4 Ves. 101; *Longmore v. Broom*, 7 Ves. 124; *Rocke v. Hart*, 11 Ves. 58; *Piety v. Stace*, 4 Ves. 620; *Ashburnham v. Thompson*, 13 Ves. 402; *Raphael v. Boehm*, 11 Ves. 92; *S. C. reheard*, 12 Ves. 407; *S. C. spoken to*, 11 Ves. 500; *Dornford v. Dornford*, 12 Ves. 127; *Franklin v. Frith*, 3 B. C. C. 433; *Littlehales v. Gascoyne*, 3 B. C. C. 73; *Newton v. Bennet*, 1 B. C. C. 359; *Lincoln v. Allen*, 4 B. P. C. 553; *Crackelt v. Bethune*, 1 J. & W. 586; *Tebbs v. Carpenter*, 1 Mad. 290.

(*e*) *Hall v. Hallet*, 1 Cox, 134; *Perkins v. Baynton*, 1 B. C. C. 375; *Stacpoole v. Stacpoole*, 4 Dow, 209,

see 224; *Heathcote v. Hulme*, 1 J. & W. 122; *Holgate v. Haworth*, 17 Beav. 259.

(*f*) *Treves v. Townshend*, 1 B. C. C. 384; *In re Hilliard*, 1 Ves. jun. 89; *Hankey v. Garrett*, 1 Ves. jun. 236.

(*a*) *Foster v. Foster*, 2 B. C. C. 616; *Hicks v. Hicks*, 3 Atk. 274.

(*b*) *Younge v. Combe*, 4 Ves. 101; *Franklin v. Frith*, 3 B. C. C. 433; *Treves v. Townshend*, 1 B. C. C. 384; *In re Hilliard*, 1 Ves. jun. 89; *Dawson v. Massey*, 1 B. & B. 230; *Browne v. Southouse*, 3 B. C. C. 107; and see *Rocke v. Hart*, 11 Ves. 60.

(*c*) *Ashburnham v. Thompson*, 13 Ves. 402.